

ASCII MASTER FLOW – PANEL 1/12: Evolution from Special Officer to three commissions

ORIGINAL ARTICLE 338

Special Officer for Scheduled Castes and Scheduled Tribes.

65TH AMENDMENT ACT, 1990

combined National Commission for SCs and STs

-> first constitutional commission constituted 12 March 1992.

89TH AMENDMENT ACT, 2003

Article 338 retained for NCSC + Article 338A inserted for NCST

-> separate commissions operational 19 February 2004.

Indra Sawhney (1992) -> permanent backward-class body.

NCBC Act, 1993 -> statutory NCBC.

102ND AMENDMENT ACT, 2018

Article 338B + Article 342A + Article 366(26C)

-> constitutional NCBC operational 15 August 2018.

105TH AMENDMENT ACT, 2021

State/UT own-list competence made explicit from 15 September 2021.

ASCII MASTER FLOW – PANEL 2/12: Composition, appointment, tenure and procedure

COMMON COMPOSITION

Chairperson + Vice-Chairperson + three other Members.

APPOINTMENT

President by warrant under hand and seal.

SERVICE CONDITIONS / TENURE

subject to parliamentary law, determined by presidential rules.

Three-year term comes from governing rules, not the constitutional clause itself.

PROCEDURE

each Commission may regulate its own procedure.

CONSTITUTIONAL STATUS

entrenches existence, mandate and report route.

LIMIT

constitutional status does not automatically guarantee timely appointments,
regional reach, staff capacity, data quality or acceptance of recommendations.

ASCII MASTER FLOW – PANEL 3/12: Common duties and complaint-to-policy cycle

COMMON DUTIES UNDER CLAUSE (5)

- investigate and monitor safeguards.
- inquire into specific complaints of deprivation.
- participate and advise in socio-economic development planning.
- evaluate development progress.
- present annual and other reports to President.
- recommend measures for effective implementation and protection.
- perform other specified functions.

EVIDENCE CYCLE

- safeguard -> implementation record -> complaint/monitoring
- > inquiry -> finding -> recommendation -> government response
- > legislative scrutiny -> corrective law, policy or administration.

LIMIT

Commission scrutiny supports remedies; it does not replace police, tribunal or court.

ASCII MASTER FLOW – PANEL 4/12: Civil-court powers and remedial limits

IN INVESTIGATION OR INQUIRY

summon and enforce attendance | examine on oath
| require discovery/production | receive affidavit evidence
| requisition public records | issue commissions
| prescribed additional matters.

LIMIT

civil-court powers gather evidence; they do not create ordinary civil jurisdiction,
criminal conviction, executable damages or power to invalidate legislation.

REMEDY ROUTE

finding/recommendation -> competent executive, legislature, police, tribunal or court.

ASCII MASTER FLOW – PANEL 5/12: Reports, action memoranda and consultation

REPORT ROUTE

annual/other report -> President -> Parliament

+ memorandum on action taken and rejected advice.

State-related part -> Governor/State Government -> State legislature + memorandum.

CONSULTATION

Union and State governments shall consult the relevant Commission
on major policy matters affecting the protected class.

LIMIT

consultation is a constitutional hearing/accountability duty, not a veto.

ASCII MASTER FLOW – PANEL 6/12: NCSC and NCST: common engine, distinct domains

NCSC: ARTICLE 338

SC safeguards, untouchability, representation, service discrimination and atrocity-prevention implementation.

NCST: ARTICLE 338A

ST safeguards plus tribal land, forest, minor produce, displacement, resources, PESA and shifting-cultivation concerns under specified functions.

ASCII MASTER FLOW – PANEL 7/12: NCBC constitutionalisation and safeguard role

NCBC: ARTICLE 338B

102nd Amendment, 2018 transformed the 1993 statutory NCBC into a constitutional safeguard commission.

COMMON ENGINE

monitor safeguards | complaints | development advice/evaluation
| reports | recommendations | specified additional functions.

CONSULTATION

major SEBC policy matters, subject to the Article 338B(9) exception for State/UT own-list preparation under Article 342A(3).

LIMIT

NCBC advice does not itself amend the Central or a State SEBC list.

ASCII MASTER FLOW – PANEL 8/12: SC, ST and SEBC list-amendment authorities

SCHEDULED CASTES: ARTICLE 341

President specifies by public notification for a State/UT;
Parliament later includes or excludes by law.

SCHEDULED TRIBES: ARTICLE 342

same constitutional pattern; State consultation occurs at initial specification.

SEBC CENTRAL LIST: ARTICLE 342A(1)-(2)

President specifies for Central Government purposes;
Parliament includes or excludes by law.

STATE / UT LIST: ARTICLE 342A(3)

State or UT may by law prepare and maintain its own list for own purposes.

ARTICLE 366(26C)

defines socially and educationally backward classes through Article 342A.

CORE DISTINCTION

Commission advice informs process; the constitutionally named authority changes legal status.

ASCII MASTER FLOW – PANEL 9/12: 102nd, Maratha judgment and 105th Amendment

102ND AMENDMENT, 2018

constitutional NCBC + original Article 342A list wording.

Jaishri Laxmanrao Patil (2021)

majority read the 102nd Amendment as displacing independent State SEBC identification; the Maratha quota also failed the separate 50% ceiling analysis.

105TH AMENDMENT, 2021

Central List confined to Central purposes

-> State/UT own lists expressly restored/clarified in Article 342A(3)

-> Article 338B(9) consultation exception for that list-making purpose.

TRAP

reservation ceiling, identification authority and Commission consultation are separate constitutional questions.

LIMIT

the 105th Amendment did not itself decide every quota, inclusion or creamy-layer dispute.

ASCII MASTER FLOW – PANEL 10/12: Davinder Singh (2024) and evidence-based SC sub-classification

Davinder Singh (2024)

HOLDING

States may create evidence-based sub-classification within Scheduled Castes to distribute reservation benefits more equitably.

CONDITIONS

quantifiable and demonstrable material -> rational classification
-> no deletion from or alteration of the Article 341 Presidential List
-> judicial review remains.

OVERRULED BOUNDARY

E.V. Chinnaiah was overruled on the bar against SC sub-classification.

CREAMY-LAYER CAUTION

separate judicial opinions discussed exclusion ideas;
do not present them as one unanimous, enacted SC/ST creamy-layer rule.

COMMISSION ROLE

evidence, consultation and monitoring may inform policy but do not replace valid law.

ASCII MASTER FLOW – PANEL 11/12: Overlap, independence, capacity and coordinated reform

GAPS

vacancies | regional access | complaint delay | weak data
| delayed reports/responses | overlapping forums | advisory limits.

REFORM

transparent appointments + timely staffing + common intake/referral
-> joint inquiry protocols + public recommendation tracker
-> research/data capacity + reasoned action memoranda.

DESIGN VERDICT

coordinate specialised commissions; do not erase distinct SC, ST and SEBC safeguards.

ASCII MASTER FLOW – PANEL 12/12: PYQ routes, Prelims traps and Mains synthesis

IMPLEMENTATION GAPS

vacancies + delayed reports + weak regional access + fragmented complaint data
+ poor recommendation tracking + overlapping forums.

REFORM

transparent appointments -> time-bound staffing -> common intake/referral
-> joint inquiry protocol -> public action-taken dashboard
-> research capacity -> reasoned government response.

PRELIMS FIREWALL

338 NCSC | 338A NCST | 338B NCBC
| Chair + Vice-Chair + three Members
| civil-court powers only for inquiry | recommendations generally advisory
| 341 SC | 342 ST | 342A Central/State SEBC architecture.

PYQ ROUTES

2018 NCSC/minority reservation + umbrella commission
| 2020 constitutionalisation | 2022 NCBC | 2023 body status | 2024 ST list.

MAINS SPINE

constitutional purpose -> common powers -> distinct domain -> legal limit
-> case/amendment -> implementation gap -> coordinated-specialisation verdict.